



NOTICE AND ACKNOWLEDGMENT

Date: _____

Employee/Contractor name: _____

The illegal use of drugs and the abuse of alcohol, as well as other types of misconduct such as theft, are problems that invade the workplace, endangering the health and safety of the abusers and those who work around them. The company is committed to creating and maintaining a workplace free of substance abuse and other types of misconduct to create a safe and effective work environment.

Our policy is strict but simple, and is as follows:

- Misconduct including but not limited to the following is absolutely prohibited. It will not be tolerated, and will subject the employee or contractor to discipline up to and including immediate termination:
 - Illegal use and/or possession or being under the influence of illegal substances at work.
 - Being under the influence of alcohol at work.
 - Theft
 - Other types of misconduct
- All employees and contractors are prohibited from manufacturing, cultivating, distributing, dispensing, possessing or using illegal drugs or other unauthorized or mind-altering or intoxicating substances while performing their work duties for the company. Included within this prohibition are lawful controlled substances that have been illegally or improperly obtained.
- All employees and contractors are prohibited from distributing, dispensing, possessing or using alcohol while at work or on duty. Furthermore, off-duty alcohol use, while generally not prohibited by this policy, must not interfere with an employee's ability to perform the essential functions of his or her job.
- Employees and contractors may be drug tested prior to or during employment.
 - Employees may be required to submit to drug/alcohol screening whenever the company has a reasonable suspicion that an employee has violated any of the rules set forth in this policy. Reasonable suspicion may arise from, among other factors, supervisory observation, co-worker reports or complaints, performance decline, attendance or behavioral changes, results of drug searches or other detection methods, or involvement in a work-related injury or accident.



- In addition, employees in safety sensitive positions may be tested on a random or periodic basis and various job classifications are categorically subject to random or periodic drug testing to the extent permitted by applicable state and federal laws.
 - Violation of this policy or any of its provisions may result in disciplinary action up to and including termination of employment.
- To enforce this policy, the company may investigate potential violations and require employees or contractors to undergo drug/alcohol screening, including urinalysis, blood tests or other appropriate tests and, where appropriate, searches of all areas of the company's physical premises, including work areas, personal articles, employees' or contractors' clothes, desks, workstations, lockers, and personal and company vehicles. Employees who refuse to cooperate with searches or investigations, refuse to submit to screening or fail to execute consent forms when required by the company will be subject to disciplinary action up to and including termination of employment.
 - When a manager or supervisor has reasonable suspicion that an employee or contractor has violated this policy, the supervisor, or his or her designee, may inspect vehicles, lockers, work areas, desks, purses, briefcases, backpacks and other locations or articles without prior notice to ensure a work environment free of prohibited substances. An employee or contractor may be asked to be present and remove a personal lock from a locker or locked container. A locked locker or container does not prevent the company from searching such article. Employees and contractors therefore should have no expectation of privacy for personal belongings brought onto the company's premises and locked in a locker or locked container. When an employee or contractor is not present or refuses to remove a personal lock, the employee or contractor hereby consents for the company to remove the lock and compensate the employee or contractor for the lock.
- All employees who test positive in a confirmed substance test will be subject to disciplinary action up to and including termination. Nothing in this policy alters or is intended to alter the at-will nature of the contractor or employee engagement, under which the employee or contractor may be terminated without notice on an at-will basis.

I have read, understand, acknowledge and agree to abide by this policy.

Employee/Contractor Signature

Company Representative

Employee/Contractor printed name

Date